

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 103 of 2016

Md. Hanif.

.....Convict-appellant.

-Versus-

The State.

.....Respondent.

No one appears.

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.... For the respondent.

Judgment on 16.07.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Md. Hanif is directed against the impugned judgment and order of conviction and sentence dated 23.04.2015 passed by the learned Additional Metropolitan Sessions Judge, 3rd Court, Dhaka in Metropolitan Sessions case No. 3322 of 2013 arising out of G.R. No. 115 of 2013 corresponding to Khilgaon Police Station Case No. 23 dated 14.03.2013 convicting the accused-appellant and another under table 2(Ka) of section 19(1) of the Madok Drobbya Niyatron Ain, 1990 and sentencing them thereunder to suffer rigorous imprisonment for a period of 03(three) years and to pay a fine of Tk. 3,000/= (three thousand) in default

to suffer rigorous imprisonment for 03(three) months more each.

The prosecution case, in short, is that one, Md. Aksaduzzaman, S.I. Khilgaon Police Station, D.M.P, Dhaka as informant on 14.03.2013 at 01.25 hours lodged an Ejahar with Khilgaon Police Station against the accused appellant and another stating, inter-alia, that on 13.03.2013 at about 18.30 hours while the informant along with other police forces were on special duty got a secret information that two persons are selling Pethidine injection at 111/1-A, Meradia Naya Para, Chan Miah Goli in front of Halima Monzil under Khilgaon Police Station, Dhaka and thereafter, at 18.40 hours the informant with other police personnel rushed to the place of occurrence and thereafter, sensing the presence of police 2 persons tried to run away but the informant party apprehended them on chase and on search, informant party recovered 8 pieces of Pethidine injections from the right side pant pocket of the accused appellant, Hanif and 6 pieces of Pethidine injection from under the Lungi (লুঙ্গী) of accused, Md. Babul Miah. Thereafter, police seized those pethidine injections by preparing seizure list in presence of witnesses.

Upon the aforesaid First Information Report, Khilgaon Police Station Case No. 23 dated 14.03.2013 under table 2(Ka) of section 19(1) of the Madok Drobbya Niyatron Ain, 1990 was started against the accused appellant and another.

Police after completion of usual investigation submitted charge sheet against the accused appellant and another, vide charge sheet No. 70 dated 31.03.2013 under table 2(Ka) of section 19(1) of the Madok Drobbya Niyatron Ain, 1990.

Ultimately, the accused appellant and another were put on trial before the learned Additional Metropolitan Sessions Judge, 3rd Court, Dhaka to answer a charge under table 2(Ka) of section 19(1) of the Madok Drobbya Niyatron Ain, 1990 to which the accused appellant and another pleaded not guilty and claimed to be tried stating that they have been falsely implicated in the case.

At the trial, the prosecution side examined in all 06 (six) witnesses to prove its case, while the defence examined none.

On conclusion of trial, the learned Additional Metropolitan Sessions Judge, 3rd Court, Dhaka by the impugned judgment and order dated 23.04.2015 found the accused appellant and another guilty of the offence under table 2(Ka) of section 19(1) of the Madok Drobbya Niyatron Ain, 1990 and sentenced them thereunder to suffer rigorous imprisonment for a period of 03(three) years and to pay a fine of Tk. 3,000/= (three thousand) each in default to suffer rigorous imprisonment for 03(three) months more each.

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Aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 23.04.2015, the accused-appellant preferred this criminal appeal.

No one appears for the convict appellant despite of fact that this matter has been appearing in the list for hearing with the name of the learned Advocate for a number of days.

In view of the fact that this petty old criminal Appeal arising out of 3(three) years sentence has been pending for hearing before this Court for more than 8 years, I am inclined to dispose of the same on merit in accordance with law.

On scrutiny of the record, it appears that the accused appellant and another were put on trial to answer a charge under table 2(Ka) of section 19(1) of the Madok Drobbya Nyantron Ain, 1990 for the offence of carrying and possessing 8+6=14 pieces of Pethidine Injunction. The prosecution to prove its case examined in all 06(six) witness out of whom PW-1, Md. Mojibur Rahman, A.S.I. Matijhil Police Station, D.M.P. Dhaka stated in his deposition that on 13.3.2013 at 6.40 PM on the basis of a secret information he under the leadership of S.I. Aksaduzzaman rushed to 111/1-A Meradia, Naya Para Chan Miah Gol in front of Halima Monzil and arrested 2 accused persons namely, Hanif and Babul Miah on chase and thereafter, on search their body recovered 8 pieces of pethidine from the right side pant pocket of the accused Hanif (appellant) and 6 pieces of

Pethidine from under the Lungi (লুঙ্গী) of accused Md. Babul Miah and thereafter, S.I. Aksaduzzaman prepared seizure list in presence of witnesses. This witness also stated that accused persons are not present in Court. PW-2, S.I. Aksaduzzaman, informant of the case. This witness stated in his deposition that on 13.3.2013 at 6.40 PM while the informant along with other police forces were on special duty got a secret information that two persons are selling Pethidine injection at 111/1-A Meradia, Naya Para Chan Miah Goli in front of Halima Monzil under Khilgaon Police Station, Dhaka and thereafter, at 18.40 hours police team rushed to the place of occurrence and then sensing the presence of police 2 persons tried to flee away but the informant party apprehended the convict appellant and another on chase and on search, recovered 8 pieces of pethidine injection from the right side pant pocket of the accused appellant, Hanif and 6 pieces of Pethidine injections from under the Lungi (লুঙ্গী) of accused, Md. Babul Miah and thereafter, police prepared seizure list in presence of witnesses. This witness also stated that accused persons are not present in Court. This witness proved the seizure list as exhibit-1 and his signature thereon as exhibit-1/1. This witness proved the FIR as exhibit-2 and his signature thereon exhibit-2/1. This witness identified the seized goods as material exhibit No. I series. This witness also stated in his deposition that accused persons are not present in Court. PW-3, Shushanka Paul, Sub Inspector, Palton Model Police

Station, DMP, Dhaka investigated the case. This witness stated in his deposition that S.I. Aksaruzzaman arrested the accused persons and seized pethidine injections. This witness stated in his deposition that he investigated the case, during investigation he visited the place of occurrence, prepared sketch map and proved the same as exhibit-4 and his signature thereon 4/1. This witness stated in his evidence that he obtained chemical examination report of seized goods and proved the same as exhibit-6. This witness also stated in his evidence that during investigation he examined the witnesses under section 161 of the Code of the Criminal Procedure and after completion of investigation having found prima-facie case against the accused appellant and another and submitted charge sheet against them and another accused under table 2(Ka) of section 19(1) of the Madok Drobbya Niyantron Ain, 1990. PW-4, Nur Alam, seizure list witness, who stated in his deposition that- “আমি আমার চায়ের দোকান মেরাদিয়া লাল মিয়ার গলির মধ্যে বসা ছিলাম। সেখানে একজন পুলিশ ও একজন এস. আই এসে আমার নাম জিজ্ঞাসা করে তখন আমার নাম নূর আলম বলি। তাহারা আমার নাম ও পিতার নাম লিখে চলে যায়। আমি আর কিছু জানি না। আমি আসামীকে চিনি না।” PW-5, Md. Rafiqul Islam, another seizure list witness, who stated in his deposition that “আমি অত্র মামলার ঘটনার বিষয়ে কিছু জানিনা। আমাকে পুলিশ এসে আমার নাম ও পিতার নাম লিখে নিয়া যায়। আমি আসামীকে চিনি না।” PW-6, A.S.I, Md. Mojibur Rahman, member of the raiding party as well as eye witness of the occurrence, who gave evidence in support of the prosecution case as like PW-1 and PW-2.

On an analyses of the above quoted evidence, it appears that police witnesses namely PW-1, PW-2, PW-3 and PW-6 in their respective testimony testified that the accused appellant and another were arrested on 13.3.2013 and on search, police recovered total 8+6=14 pieces of pethidine Injection. It further appears that PW-4 and PW-5, seizure list witnesses stated nothing in their respective evidence against the accused appellant as to carrying and possessing contraband goods. It further appears that in this case occurrence took place on 13.3.2013 at 18.30 hours although police lodged the FIR with Khilgaon police station on 14.3.2013 at 1.25 hours i.e. more than 7 hours without any reasonable explanation and there is nothing on record to show that how much quantity of “Buprenorphine Hydrochloride” found in the seized articles.

In the case of Md. Ashraful Islam Vs. The State reported in III ADC 343, it has been held as follows:

“The submissions merit consideration, Leave is, therefore, granted to consider the ground that the trial Court and the High Court Division failed to consider that unless the quantity of hereon in question is ascertained by a report by chemical examiner the conviction under section 19(1) of Table 1(kha) of Narcotics Control Act, 1990 is not sustainable in law and as such it is liable to be set aside.”

It is found in this case on receipt of information through secret source PW I and some other personnel

department raided and searched the accused and recovered pethidine injections. Thus, the search was prearranged and preplanned one. But it was not made in presence of two respectable persons of the locality, even not in presence of the neighbouring shop-keepers. Seizure list witnesses namely, PW 4 and PW-5 did not support search, recovery and seizure in their presence. Thus, it is evident that search was not made in accordance with section 103 of the Code of Criminal Procedure though there was ample scope of making search complying with the mandatory provision of that section. It is held in the cases of *Moklesur Rahman and another vs State*, 1994 BLD 126, *Habibur Rahman vs State*, 47 DLR 323 1995 BLD 129, *Julfikar Ali @ Kazal vs State*, 1995 BLD 570 = 47 DLR 603, *Jewel vs State*, 5 MLR 1705 BLC 248 and *Harun Bepari (Md) vs State* 5 MLR 3955 BLC 501 that search and seizure of incriminating articles without strictly complying with requirement of section 103 of the Code of Criminal Procedure cannot be held legal. This principle of law is applicable in the instant case.

Moreover, in this case no local and private witnesses supported alleged recovery and seizure. The conviction is based on the evidence of 4 police witnesses, who were the members of the seizing party and one of them is the informant. In the case of *Habibur Rahman vs State*, 47 DLR 323 =1995 BLD 129, it is held that police personnel conducting the search and seizure are interested witnesses and their evidence requires independent corroboration. Same

view was taken in the case of Gaziur Rahman vs State 1991 BLD 11. In the case of Mati Miah vs State, 44 DLR 554, it is held that conviction cannot be based on the uncorroborated testimony of the informant, who is a police officer and virtually interested in the result of the case. In the case of Aslam Jahangir vs State, 2000 BLD 426 = 5 BLC 514, it is held that the evidence of the private witnesses regarding denial of their presence at the scene of recovery in no way can be cured by the police personnel witnesses, who are interested in the result of the case.

Taking into consideration all the aspects of the case, particularly the fact that seizure list witnesses namely PW-4 and PW-5 stated nothing against the accused appellant and the evidence of police witnesses were not corroborated from any private individual and the quantity of “Buprenorphine Hydrochloride” was not ascertained by a report in accordance with law vis-a-vis the principles laid down in cited cases, I am constrained to hold that the prosecution has failed to prove the charge against accused Md. Hanif beyond any reasonable doubts. The learned Additional Metropolitan Sessions Judge failed to evaluate the evidence from a proper angle thereby reaching a wrong decision, which occasioned a failure of justice. Consequently the appeal succeeds.

In the result, the appeal is allowed and the impugned judgment and order of conviction and sentence dated 23.04.2015 passed by the learned Additional Metropolitan

Sessions Judge, 3rd Court, Dhaka in Metropolitan Sessions case No. 3322 of 2013 arising out of G.R. No. 115 of 2013 corresponding to Khilgaon Police Station Case No. 23 dated 14.03.2013 against the accused-appellant is set-aside and he is acquitted of the charge levelled against him.

Accused appellant, Md. Hanif is discharged from his bail bonds.

Send down the lower Court records at once.